

#		
1.	Deris v. Toyotas Motor Sales, U.S.A., Inc. 23-1335810	The Motion to Compel the Deposition of Defendant's Person Most Knowledgeable ("PMK"), filed on 12/2/24 by Plaintiff Kazem Deris ("Plaintiff") against Defendant Toyota Motor Sales, U.S.A., Inc. ("Defendant") is DENIED. The Motion seeks to compel Defendant to produce a PMK to testify on categories 8-37 in the Amended Notice of Deposition. However, there are two Amended Notices at issue here. The first was served on May 6, 2024 ("May 6 Notice"), noticing a deposition for June 20, 2024. Defendant served objections to that notice on June 17, 2024, but indicated "TMS will produce its witness on the categories of claims handling on this date. TMS will meet and confer with Plaintiff to reschedule the deposition as to the remaining categories on a date and time that is mutually convenient". (See Declaration of Stoliker, Exhibit 5.) Defendant provides a declaration and pages from a deposition that indicate that deposition was taken on June 17, 2024, with the transcript certified on July 2, 2024. (See Declaration of Sniderman, ¶¶ 3-5, Exhibit A and B.) The present motion was filed on December 2, 2024. To the extent this motion is seeking to address Defendant's objections served as to the May 6 Notice, it is untimely. <i>Code of Civ. Proc. § 2025.480(b)</i> provides a motion to compel when a deponent fails to answer any question or produce any document, or tangible thing must be made no later than 60 days after completion of the record of deposition. The Second Amended Notice of Deposition was served on September 23, 2024, noticing a deposition for November 8, 2024. Plaintiff admits that the September 23, 2024, Second Amended Notice of Deposition was inadvertently served to Defendant's prior counsel, not its current counsel. Though Plaintiff asserts that the failure to respond or object "constitutes a waiver of any error or irregularity in the notice" under <i>CCP § 2025.410</i>, this position is incorrect. <i>CCP § 2025.410(a)</i> provides that "Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection". (emphasis added) There is no evidence that Defendant was served with the deposition notice, thus it had no duty to timely object to a notice it never received. There is no logical

		way to require a party to timely object to a notice that was not served on it. As Defendant was not served with the notice of deposition, the motion is DENIED. No sanctions are warranted. <i>Counsel for Defendant is ordered to give notice.</i>
2.	Garduno v. P.C. & RS Chao Family Limited Partnership, LP 23-1340712	Before the court is a motion by Plaintiffs to compel Walt Disney Parks and Resorts U.S., Inc. ("WDPR") and The Walt Disney Company ("TWDC") to provide further responses to Requests for Production of Documents, Set Two ("Set Two"). The Motion is DENIED, as set forth herein. Motion as to WDPR WDPR asserts that the plaintiffs' motion is time barred. The court agrees. Pursuant to <i>Code of Civil Procedure section 2030.300, subdivision (c)</i>, a motion to compel further responses to interrogatories must be filed within 45 days of service of the verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, with additional time allowed for the manner of service. On 3/26/24, WDPR served verified responses to Requests for Production, Set One ("Set One"). (Exhs. C to Opp.) This meant that the last day to file a motion to compel as to Set One was May 14, 2024. No motion to compel was filed as to Set One. Instead, on 6/25/24, plaintiffs served Request for Production, Set Two, to each of the Defendants on 6/25/24. (Exh. A to Motion; Semerjian Decl. ¶4) The court has compared Request No. 10 in Set One and finds it essentially the same as the two requests in Set Two. As the Court stated in <i>Pro. Career Colleges, Magna Inst., Inc. v. Superior Ct.</i> (1989) 207 Cal.App.3d 490, "it would be an absurdity to say that a party who fails to meet the time limits of section 2030 may avoid the consequences of his delay and lack of diligence by propounding the same question again. Such a construction of the statute would obviously encourage delay and provide no incentive to attempt to resolve any dispute with the opposing party. The Legislature has explicitly stated that unless a party moves to compel further response within 45 days of the unsatisfactory response, he waives any right to compel a further response. We hold that this means what it says, plaintiff's motion was therefore untimely."